

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK-----X
MICHAEL J. DEVEREAUX,

plaintiff,

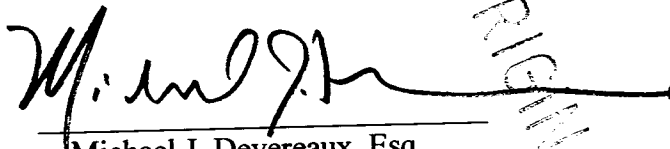
- against -

THE CITY OF NEW YORK; THE NEW YORK CITY
POLICE DEPARTMENT;; and POLICE OFFICER
PERALTA Shield/Registry # 949465defendants.
-----XIndex No.
Date of filingPlaintiff designates New
York County as the place
of trialBasis of the venue in the
residence of plaintiff

SUMMONS

TO THE ABOVE-NAMED DEFENDANTS:

You are hereby SUMMONED to answer this sworn-to verified complaint in this action and to serve a copy of your verified answer on the plaintiffs' attorneys, DEVEREAUX LAW GROUP(a d/b/a of Michael J. Devereaux & Associates, P.C.), with offices at 39 Broadway Suite 910, New York, New York 10006, within twenty (20) days after the personal service of the summons with verified complaint, or within thirty (30) days if not personally served on you. A default judgment will be taken against you in the event you fail to answer or fail to appear.

DATED: April 23, 2015
New York, New York
Michael J. Devereaux, Esq.
DEVEREAUX LAW GROUP
39 Broadway Suite 910
New York, New York 10006
212-785-5959(T)
www.devlegal.comDefendant's address:
THE CITY OF NEW YORK
100 Church Street

New York, New York 10007

THE NEW YORK CITY POLICE
DEPARTMENT

100 Church Street
New York, New York 10007

POLICE OFFICER PERALTA

Shield/Registry # 949465

c/o The NEW YORK CITY POLICE DEPARTMENT
100 Church Street, New York, NY 10007

Original

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
MICHAEL J. DEVEREAUX,

plaintiff,

- against -

Index No.

VERIFIED COMPLAINT

THE CITY OF NEW YORK; THE NEW YORK CITY
POLICE DEPARTMENT; and POLICE OFFICER
PERALTA Shield/Registry # 949465,

defendants.
-----X

Plaintiff MICHAEL J. DEVEREAUX, by and through his attorneys, The Devereaux Law Group (a d/b/a of Michael J. Devereaux & Associates, P.C.), with offices at 39 Broadway, Suite 910, New York, New York 10006, hereby complains that the Police Officer Peralta Shield/Registry # 949465 improperly confronted him, falsely accused, physically assaulted, abused, falsely arrested and detained, and maliciously prosecuted him on Monday, June 23, 2014, as follows:

1. As plaintiff left his office of about fifteen years at 39 Broadway, Suite 910, New York, New York 10006, on Monday, June 23, 2014, in the early evening, and walking in his neighborhood of over 25 years, to his home at 95 Wall Street, Apt 224, New York, NY 10005, plaintiff was wrongfully confronted and falsely accused by New York City Police Officer Peralta of having struck an unknown and unidentified car that was in and proceeding through the crosswalk although the light was red and pedestrians, including plaintiff were in the crosswalk.

2. Police Officer Peralta falsely accused plaintiff of having damaged the unknown and unidentified car, and falsely stated that he had seen everything although well over one hundred and fifty yards away from the intersection.

3. When plaintiff objected and told that Police Peralta that he was not merely wrong but absolutely wrong and mistaken and had seen absolutely nothing because his statements were absolutely wrong, Police Officer Peralta stated that plaintiff was disrespecting him and therefore he was arresting plaintiff, directing plaintiff to immediately turn around, drop his brief case, and drop his dog's leash, and hand-cuffed plaintiff after tying the dog's leash to a sign's pole on the corner of Beaver and Broadway.

4. Police Officer Peralta falsely accused plaintiff of resisting arrest because plaintiff was tying his dog's leash to the sign pole. Police Officer Peralta told plaintiff that plaintiff was going to jail and to make arrangements for his dog but since plaintiff was handcuffed, he was unable to do so. Plaintiff notified Police Officer Peralta that his office was across the street at 39 Broadway and that his employees were available to take plaintiff's dog but Police Peralta ignored plaintiff.

5. There are eye-witnesses that witnessed Police Officer Peralta's false arrest, physical assault, false accusations, and abuse. One of these witnesses is the daughter of a New York City retired detective. This eye-witness videotaped and photographed the occurrence. Police Officer Peralta directed her to move away and she did as directed. When he directed her to stop videotaping and photographing, she refused stating that her father was on her cell phone, saying she and the other witnesses had the right to videotape and photograph. Plaintiff remained silent throughout this interaction.

6. Police Officer Peralta's "partner," came over and stood-by plaintiff as Police Officer Peralta made calls on his cell phone and radio and spoke for no less than 45 minutes to over one hour on his cell phone and, at times, his radio. His partner apologized to plaintiff and shook his head. Plaintiff mentioned that if he knew that Police Peralta was wrong then to please

stop him and rectify the situation but he said that since Police Officer Peralta was his partner that he had to back him up.

7. Some eye-witnesses left giving their contact information to other eye-witnesses. Three eye-witnesses stayed through-out the occurrence until the handcuffs were finally removed well over one-hour later.

8. Police Officer Peralta issued plaintiff a summons falsely accusing plaintiff of, among other things, violent and threatening behavior, screaming, cursing and yelling and causing or inciting a crowd to gather. The accusations are false in part and in whole, and the eye-witnesses who were, at all times present, and videotaping and photographing the occurrence establish beyond any reasonable doubt, the falsity of Police Officer's Peralta's accusations.

9. Among the eye-witnesses were plaintiff's friends, neighbors, co-workers, and acquaintances who witnessed plaintiff handcuffed in public for over one hour.

10. Plaintiff was not, at any time, screaming, yelling, violent, threatening, cursing, and/or any other such behavior.

11. Plaintiff appeared ready with eye-witnesses to have his trial or case heard on the initial and each and every adjourned date. On one date, Police Officer Peralta was seen by one of the eye-witnesses present in the Courtroom or Hearing Room and eye-witnessed Police Officer Peralta walk out of the Courtroom, never to return.

12. Police Officer Peralta's summons was dismissed on December 1, 2014. A certified Certificate Of Disposition was obtained.

13. Plaintiff, at all relevant times, was and remains a citizen of the City, and County of New York for about twenty-five (25), and born, raised and educated in the State of New York.

14. Defendant THE CITY OF NEW YORK maintains a police force known as the defendant NEW YORK CITY POLICE DEPARTMENT.

15. Plaintiff timely and properly served a notice of claim.

16. Plaintiff timely and properly appeared for a 50-H hearing.

AS AND FOR A
FIRST CAUSE OF ACTION

17. Plaintiff repeats, reiterates, and realleges each and every allegation contained in ¶¶ “1” through “16” inclusive, with the same force and effect as if fully set forth at length herein.

18. Defendants improperly and violently confronted plaintiff and falsely accused him and without just cause and authority physically assaulted and handcuffed and detained plaintiff causing plaintiff damages exceeding the jurisdictional limits of all lower courts. Reasonable grounds, reasonable suspicion, and/or probable cause never existed and Police Office Peralta made and repeated false accusations.

AS AND FOR A
SECOND CAUSE OF ACTION

19. Plaintiff repeats, reiterates, and realleges each and every allegation contained in ¶¶ “1” through “18” inclusive, with the same force and effect as if fully set forth at length herein.

20. Defendants wrongfully arrested, handcuffed and confined, detained and imprisoned plaintiff causing plaintiff damages exceeding the jurisdictional limits of all lower courts. Reasonable grounds, reasonable suspicion, and/or probable cause never existed and Police Office Peralta made and repeated false accusations.

AS AND FOR A
THIRD CAUSE OF ACTION

21. Plaintiff repeats, reiterates, and realleges each and every allegation contained in ¶¶ “1” through “20,” inclusive, with the same force and effect as if fully set forth at length herein.

22. Defendants maliciously prosecuted plaintiff based on false accusations and legal instruments falsely attested-to, causing plaintiff damages exceeding the jurisdictional limits of all lower courts. Reasonable grounds, reasonable suspicion, and/or probable cause never existed and Police Office Peralta made and repeated false accusations.

AS AND FOR A FOURTH
CAUSE OF ACTION

23. Plaintiff repeats, reiterates, and realleges each and every allegation contained in ¶¶ “1” through “22,” inclusive, with the same force and effect as if fully set forth herein.

24. Defendants violated plaintiff's Civil Rights, depriving plaintiff of liberty without due process and without reasonable grounds in violation of applicable local, state and federal laws and statutes, including, but not limited to 42 USCA § 1983, causing plaintiff damages exceeding the jurisdictional limits of all lower courts. Reasonable grounds, reasonable suspicion, and/or probable cause never existed and Police Office Peralta made and repeated false accusations.

AS AND FOR A FIFTH
CAUSE OF ACTION

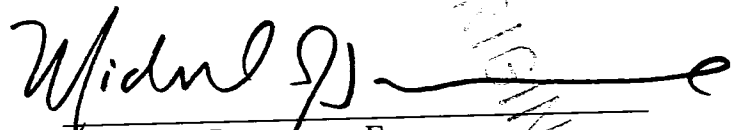
25. Plaintiff repeats, reiterates, and realleges each and every allegation contained in ¶¶ “1” through “24,” inclusive, with the same force and effect as if fully set forth herein.

26. Plaintiff is entitled to a declaration that defendants wrongfully and improperly confronted, physically assaulted, falsely arrested, detained, confined, and imprisoned plaintiff, falsely accused him, maliciously prosecuted him, and violated his civil rights.

27. Defendants acted maliciously, willfully, and grossly improper and negligent, reckless, and/or deliberately entitling plaintiff to exemplary relief and damages exceeding jurisdictional limits of all lower courts.

WHEREFORE, the Court is respectfully requested to grant plaintiff judgment after trial by jury, in a sum of money that exceeds the jurisdictional limits of all lower courts, together with costs, interest and attorneys' fees, and such other and further relief as is just and proper in the circumstances.

Dated: April 23, 2015
New York, New York

A handwritten signature in black ink, appearing to read "Michael J. Devereaux", followed by a long horizontal line extending to the right.

Michael J. Devereaux, Esq.
DEVEREAUX LAW GROUP
Attorneys for Plaintiff
39 Broadway, Suite 910
New York, New York 10006
(212) 785-5959 (T)
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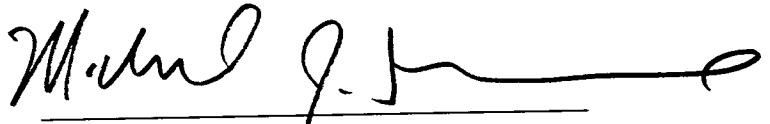
ORIGINAL

VERIFICATION

STATE OF NEW YORK)
) ss:
COUNTY OF NEW YORK)

Michael J. Devereaux, having read and understanding the averments made in the aforesaid verified complaint, dated April 23, 2015, hereby verifies and swears to the truth and accuracy of the averments in the aforesaid verified complaint, dated April 23, 2015, under penalties of perjury.

Dated: April 23, 2015
New York, New York



Michael J. Devereaux

Sworn-to before me this
the 23rd of April, 2015



NOTARY PUBLIC

EDWARD LEBEAUX
Notary Public, State of New York
No. 4852262
Qualified in Nassau County
Commission Expires March 17, 2018